



Code: ACA-AR
Revised/Reviewed: 7/21/21

ADA Grievance Procedure

The compliance officer is responsible for coordinating HCCS's efforts to comply with the Americans with Disabilities Act of 1990 and the Americans with Disabilities Act Amendments Act of 2008 ("ADA"). The compliance officer shall be a neutral party having had no involvement in the complaint presented.

Any complaint shall be presented in writing to the compliance officer or the administrator/principal within 180 days from date of alleged discrimination. It must include the following:

- The name and address of the individual or the representative filing the complaint;
- The description of the alleged discriminatory action in sufficient detail to inform HCCS of the nature and date of the alleged violation;
- A signature by the complainant or by someone authorized to do so on the complainant's behalf;
- The identification (by name, if possible) of the alleged victims of the discrimination for any complaint filed on behalf of classes or third parties.

Step 1 The compliance officer shall thoroughly investigate the complaint, notify the person who has been accused of discriminating, permit a response to the allegation and arrange a meeting to discuss the complaint with all concerned parties within 10 working days after receipt of the written complaint, if deemed necessary. The compliance officer shall give a written answer to the complainant within 15 working days after receipt of the written complaint.

Step 2 If the complainant is not satisfied with the answer of the compliance officer, the complainant may submit a written appeal to the administrator/principal indicating with particularity the nature of disagreement with the answer and reason underlying such disagreement. Such appeal must be filed within 10 working days after receipt of the compliance officer's answer. The administrator/principal shall arrange a meeting with the complainant and other affected parties, if requested by the complainant, at a mutually agreeable time to discuss the appeal.

The administrator/principal shall give a written answer to the complainant's appeal within 10 working days.

Step 3 If the complainant is not satisfied with the answer, an appeal to HCCS Board may be filed within 10 working days after receipt of the Step 3 answer. The Board shall, within 20 working days, conduct a hearing at which the complainant shall be given an opportunity to present the complaint. The Board shall give a written answer to the complainant within 10 working days following completion of the hearing.

If the complainant is not satisfied with the decision of the HCCS Board, a complaint may be filed with the Coordination and Review Section, Civil Rights Division, U.S. Department of Justice (student complaints) or the U.S. Department of Labor, Equal Employment Opportunity Commission or Oregon Bureau of Labor and Industries (employment complaints).

Individuals may initiate complaint procedures and/or civil actions with or without first complying with local complaint procedures.